

FMC Docket 24-23
Respondent's Memorandum Opposing
Complainant's Claim of
Privilege and Claw Back Demand Of 180
Documents

Public – Unrestricted Version

	)	
Samsung Electronics America, Inc.,	)	
	)	
Complainant	)	
	)	
v.	)	DOCKET NO. 24-23
	)	
HMM Co., Ltd F/K/A Hyundai Merchant	)	
Marine, Co. Ltd.,	)	
	)	
Respondent	)	
	)	

May 22, 2026

On May 8, 2026, just prior to the depositions of certain SEA employees, SEA’s counsel sent an email (the “May 8 Email”)¹ seeking to “claw back” 158 documents produced in July, 2025, as non-attorney fact “work product” “relate[d] to an audit conducted at the direction of counsel.” (the “Claw Back Demand”). SEA advised that it realized these documents had been produced in the COSCO litigation on or about April 24, 2026. The documents covered by the Claw Back Demand were listed on a “Privilege Log” provided with the May 8 Email.² The Privilege Log identifies five attorney client emails that were not produced (Nos. 1-5 on the Privilege Log). The HK Privilege Description for No. 5 asserts that the withheld communication embodies [REDACTED]

[REDACTED]. See SEA-PRIV-0034. On May 20, 2026, SEA provided an amended “Privilege Log” supplementing the Claw Back Demand to include an additional twenty-two documents³ (for a total of 180 documents, collectively, the “Suspect Documents”) and identifying a further 150 attorney-client emails for *in camera* review which SEA has portrayed as helpful “background” for the court.⁴

¹ The May 8, 2-26 Email is attached at Exhibit 1.

² The Privilege Log asserts two reasons for claiming work product protection of the vast majority of its documents: 1) “Attorney work product compiled at the direction of counsel in anticipation of potential claims against ocean carriers” and 2) “Communication regarding detention and demurrage charges compiled at the direction of counsel for audit-related analysis in anticipation of potential claims against ocean carriers.” The Privilege Log is deficient because the “Privilege Description” is not specific enough to satisfy FRCP 26(b)(5)(A) and it does not provide the Presiding Officer with enough information to resolve the issues at hand. Instead, these are formulaic recitations of the basis for work product claims with insufficient detail to enable the reader to determine whether the documents constitute work product. Moreover, many required pieces of information are not provided or explained, and SEA includes materials in Korean without translation in the Privilege Log. Since some of the Korean language material is the most damaging, HMM includes certified translations here.

³ SEA represents in its transmittal, Exhibit 2, that it has added twelve additional documents. However, the amended Privilege Log, Exhibit 3, appears to include 22 additional documents, for a total of 180 allegedly privileged documents that were produced. HMM’s analysis of SEA’s claims of work product protection has been substantially hampered by SEA’s sloppy preparation and “eleventh hour” service of the amended Privilege Log. For example, SEA_HMM-0556191 does not appear in the initial Privilege Log and is not identified in SEA’s transmittal of the amended Privilege Log, but does appear in SEA’s amended Privilege Log.

⁴ The amended Privilege Log further muddies the waters because it changes the order and number of the documents from the initial Privilege Log and is incomplete or contains insufficient descriptions of the documents. Neither Privilege Log meets the requirements of Federal Rule of Civil Procedure 26(b)(5)(A) to which the Presiding Officer pointed in his Initial Order. Moreover, the amended Privilege Log, Exhibit 3, includes materials that SEA describes as “work product” despite the materials having been [REDACTED]. See, e.g., SEA-PRIV-00019; SEA-PRIV-00082; SEA-PRIV-00083; SEA-PRIV-00088. Remarkably, SEA

The Suspect Documents are almost entirely emails and attachments exchanged by SEA non-attorney employees regarding an “IEC audit”⁵ allegedly ordered by “HQ” and make no reference to any requests by counsel.⁶ The Suspect Documents are highly damaging to SEA’s case because they are related to a yearly audit conducted by SEA which concludes that SEA is responsible for a significant portion of the damages it now claims against various ocean carriers, including HMM.⁷ Even if these documents were protected (which they are not), SEA produced the Suspect Documents ten months ago and failed to take any precautions to protect the materials, waiving any protections that may have existed.

I. Argument

When considering a claim of work product protection, a court must first determine whether the disclosed material is privileged or otherwise protected from disclosure. If it is not, the inquiry ends, and the documents remain discoverable and admissible. If the material is protected, the court applies the criteria specified in FRE 502(b) to determine whether a waiver has occurred.

1. The Suspect Documents Are Not Work Product

The party asserting work product protection bears the “heavy” burden of demonstrating that the doctrine applies and that it has not been waived. *See In re Grand Jury Subpoena Dated July 6, 2005*, 510 F.3d 180, 183 (2d Cir. 2007); *Allied Irish Banks, p.l.c. v. Bank of Am., N.A.*, 252 F.R.D. 163, 173 (S.D.N.Y. 2008). “The material must (1) be a document or a tangible thing, (2) that was prepared in

even identifies a produced document in its amended Privilege Log and seeks to claw it back despite the fact that it was [REDACTED] at SEA_HMM-0556191.

⁵ A number of documents make no reference to the IEC audit but discuss the conclusions that are damaging to SEA. These are documents bearing Bates numbers SEA_HMM-2819759; SEA_HMM-3185358; SEA_HMM-2819765; SEA_HMM-3185352 and include correspondence from persons that SEA fails to identify but who appear to work for Samsung Electronics in Korea. These documents are in Korean, and so HMM provides certified translations of these materials with the filing for ease of reference.

⁶ SEA tries to obfuscate its efforts to conceal damaging evidence that is not work product by characterizing HMM’s objection as a disfavored “blanket objection.” In reality, SEA is trying to protect a host of documents that are damaging to its claim in this case and its claims against other ocean carriers.

⁷ HMM respectfully submits that this is the real reason behind the sudden demand to retrieve these materials ten months after these documents were produced.

anticipation of litigation, and (3) was prepared by or for a party, or by his representative.” *Id.* A document is eligible for work product privilege only if it was prepared “in anticipation of litigation,” meaning that “in light of the nature of the document and the factual situation in the particular case, the document can fairly be said to have been prepared or obtained because of the prospect of litigation.” *Adlman*, 134 F.3d at 1202 (internal quotation marks and citation omitted).

There are two types of work product, fact and opinion. There is no dispute that the Suspect Documents SEA seeks to claw back are allegedly fact work product. However, this alleged fact work product is not the result of a factual investigation by counsel, such as witness interviews, and instead consists entirely of emails and documents exchanged between SEA’s non-attorney employees (and in some cases non-SEA employees) without any indication the emails or documents were sent or prepared at the direction of counsel or relate to any anticipated litigation.⁸ Instead, these materials are non-attorney fact work product and the most tenuous ground upon which to claim protection.

SEA’s counsel initially claimed that five attorney-client emails, dated February 15 through February 21, 2022, formed the predicate for asserting work product protection over the Suspect Documents (SEA-PRIV-0001 – 5).⁹ Both Privilege Logs provided by SEA identify a February 21, 2022, [REDACTED]

[REDACTED] See SEA-PRIV-0034.

Assuming *arguendo* that this representation is true, it is meritless on its face because the collection of data referenced in the Suspect Documents began at least one-month earlier on January 4,

⁸ As noted *supra*, in SEA’s amended Privilege Log, SEA even describes additional materials that were not produced as “work product” despite having been [REDACTED].

⁹ SEA’s amended privilege log attempts to move this date back, but even here the first email is dated January 11, 2026, and describes only alleged “work product” without sufficient detail to explain how work product was generated prior to the February 21, 2022, instruction from counsel to collect the remaining alleged work product.

2022, at the direction of a non-attorney and for reasons unrelated to this case.¹⁰ *See, e.g.*, January 4, 2022, email to Maria Dacumos, SEA_HMM-2736537, attached as Exhibit 4. This email does not copy any counsel and comments that “Everyday almost all the vendors are screaming for the payment. So this is getting out of control.” *Id.* Critically, there is no reference to the audit occurring at the request of counsel, or in anticipation of litigation. This is true of every Suspect Document. In the same email chain, SK Han goes further on January 6, 2022, approximately six weeks before SEA claims that instructions had been issued, directing Maria Dacumos to designate a finance person to partner with a designated supply person to collect invoices, validate same with supporting documents, and “lead this small TF team until everything would be up to date” to address IEC vendors that were “taking actions not to accept SEA’s orders” and limiting SEA’s capacity to move its cargo. *See id.*

Similarly, separate correspondence from SEA dispatcher, SK Han, dated January 6, 2022, well before SEA engaged in discussions with Holland & Knight in February, 2022, identifies IEC payments as “totally out of control” before assembling a team to resolve the “invoice matters”. (*see*, SEA_HMM-2834332, Exhibit 5). In the same email chain, an “IEC Clearance Summary” was circulated on January 7, 2022, with BK Choi and other senior business personnel at SEA, without copying or referring to counsel or referencing the prospect of litigation in any way. *Id.* The response was a statement of account showing over \$24MM owed to “IEC Vendors.” *Id.* Nothing in these emails suggests they were prepared at the request of counsel, or in anticipation of litigation. To the contrary, this data and the related progeny were prepared in the ordinary course of business and are not protected by the work product doctrine.

Prior to the engagement of Holland & Knight, SK Han also instructed SEA employees regarding an “IEC 2021 post audit” in his email of February 2, 2022. *See*, SEA_HMM-2147898, Exhibit 6. In this email, SK Han describes an instruction to “create audit capability for IEC, especially demurrages

¹⁰ SEA failed to pay a number of its vendors and was being threatened with non-service by motor carriers due to outstanding invoices. As a result, SK Han directed SEA employees to prepare an audit to assist with information necessary to secure payment approvals and restore trucking services to SEA.

and detentions in WMP so that we can at least complete the post audit for demurrages and detentions that occurred in 2021.” *Id.* He continues, “this IEC issue is becoming a hot potato in HQ” and instructs his colleagues to “take this seriously and try to complete ASAP.” This communication shows that the Suspect Documents are in fact related to an HQ interest in these details, not instructions from counsel.

On February 16, 2022, SK Han also instructed Maria Dacumos to prepare materials in advance of scrutiny of the “IEC issue,” including gathering payment details, invoices and backup materials, including demurrage and detention calculations, and other materials to show that invoices are properly audited by SEA. SEA_HMM-2717018, Exhibit 7.

In reviewing the above-referenced emails (and the other Suspect Documents), there is simply no evidence that the efforts described in these communications were occurring for any reason other than SEA’s ordinary business operations, and no reference is made to any directions having been received from counsel or that the material was being prepared for counsel. The argument that the Suspect Documents are work product is meritless and appears to be nothing more than a desperate ploy to bury extremely damaging documents. While it is not possible to discuss every Suspect Document within the space limitations applicable to this Memorandum, HMM has painstakingly reviewed every Suspect Document and attaches as Appendix 1 HMM’s specific objections and comments to each, providing a detailed, document-by-document response to SEA’s claims of work product protection.

2. SEA’s Belated Assertion of Work Product Protection Has Been Waived

Even if the Suspect Documents were entitled to protection as non-lawyer work product, which they plainly were not, SEA waived its right to claim this protection.¹¹ To determine whether SEA has

¹¹ The Order Pursuant to Federal Rule of Evidence 502(d) entered in this case on July 18, 2025 (“July 18, 2025 Order” - Dkt. No. 33) and the Order Granting Joint Motion for Entry of Protective Order entered in this case on January 29, 2026 (Dkt. No. 46)(“January 29, 2026 Order” and together with the July 18, 2025 Order, “the Orders”), include the following statement with respect to Federal Rule of Evidence 502(b): “The provisions of Federal Rule of Evidence 502(b) do not apply.” *See* Dkt. 33, Para. 3; Dkt. 46, Para. 14. The July 18, 2025 Order noted “that the parties’ proposed order does not include deadlines or procedures for clawing back inadvertently disclosed privileged information, or for challenging any such clawback...” Paragraph 15 of the January 29, 2026 Order provides procedures for clawing back inadvertently disclosed privileged information and resolving disputes, but remains silent as to the timeframes applicable to a party’s right to clawback documents. HMM does not believe this right is limitless and can be exercised without regard to the procedural posture of the matter. Mindful of the Orders’ statement that “provisions of Federal Rule of Evidence 502(b)

waived the work product protection, courts will consider the reasonableness of precautions taken; the time taken to rectify the error; the scope of discovery; the extent of disclosure; and the overriding issue of fairness.¹² SEA's claim fails each factor.

Factor 1: SEA failed to take reasonable precautions

The supposedly inadvertent disclosure of 180 documents is *per se* evidence that SEA failed to take reasonable precautions to review these documents. None of the Suspect Documents were labeled as "Attorney Work Product" or given any other "Confidential" designation when produced. SEA had nearly a year to raise this issue,¹³ and the Suspect Documents were produced in at least two separate cases.¹⁴ While it may be possible for a small number of documents to slip past review, the sheer volume of documents, together with SEA's representation that it had reviewed these very documents, establishes a failure to take reasonable precautions. This factor weighs in favor of finding waiver.

Factor 2: SEA did not seek to rectify the supposed error in timely fashion.

SEA waived any work product protection because it claims this protection more than ten months after they were produced. The ruling in *Maher Terminals*¹⁵ is particularly instructive because the FMC found that a failure to act promptly to rectify the production of fifty-seven documents until 41 days after the production, and 14 days after the producing party learned that privileged documents had been produced, constituted a waiver of the attorney-client privilege and work product protection. Here, there is no dispute that the 180 Suspect Documents were produced over ten months ago or that SEA waited

do not apply" Respondents refer to the provisions of Rule 502(b) in this analysis as relevant considerations in the absence of a specific deadline for the clawback of documents in the Orders.

¹² See, e.g., *U.S. v. Citgo Petro. Corp.*, CR. No. C-06-563, 2007 WL 1125792, at *2 (S.D. Tex. Apr. 16, 2007); *Sidney I. v. Focused Retail Prop. I, LLC*, 274 F.R.D. 212, 216 (N.D. Ill. 2011); *Riverio-Calder v. Cooperativa de Ahorro y Creditode Aguiladilla*, No. CIV. 11-1702CCC, 2013 WL 503965, at *3 (D.P.R. Feb. 8, 2013).

¹³ SEA also represented to the Court and to HMM's counsel that the Suspect Documents had been reviewed for privilege. In the September 5, 2025, Joint Status Report, SEA represented that "SEA's privilege and quality control is complete" (p. 2) and that "SEA had completely reviewed all 776,875 potentially responsive documents." There is no reason not to rely on this representation.

¹⁴ HMM understands that SEA seeks to claw back documents of a similar magnitude in FMC Docket 24-16.

¹⁵ *Maher Terminals LLC v. Port Authority of New York and New Jersey*, Order dated July 23, 2010 (FMC Dkt. 08-03).

about fourteen days after it discovered the Suspect Documents had been produced to make the Claw Back Demand. This factor strongly supports waiver, and the Claw Back Demand should be denied on this basis alone.¹⁶

Factor 3: SEA's Claw Back Request is significant.

While there are many documents in evidence, SEA's supposedly inadvertent production of 180 work product documents is not a minor or routine claw back request. In *American Cas. Co. of Reading, Pennsylvania v. Healthcare Indemnity, Inc.*, (U.S.D.C. Kansas) April 19, 2002, 2002 WL 1156273, the court found that the disclosure of 90 allegedly privileged documents weighed in favor of finding waiver. Here, SEA claims to have inadvertently produced nearly twice that number. This factor also weighs in favor of finding waiver.

Factor 4: Extent of Disclosure

The Suspect Documents have been in evidence for nearly a year. During this time, they have been reviewed by HMM and HMM's counsel. Indeed, HMM was relying on them for the upcoming depositions, and the facts uncovered by the audit discussed in the Suspect Documents have been used in crafting strategy, drafting client advices, and preparing tactically for depositions and briefing. They are also critical materials for HMM's experts. The Suspect Documents are inextricably intertwined into respondent's understanding of the case and defense of SEA's claims and cannot be "unlearned." Accordingly, the fourth factor strongly favors waiver.

Factor 5: Fairness

¹⁶ If the Court were to allow a claw back of documents ten months after production and fourteen days after discovery of the production, it would be a remarkable departure from the precedent on the time taken to rectify such a production. See, e.g., *Preferred Care Partners Holding Corp. v. Humana, Inc.*, 258 F.R.D. 684, 699-700 (S.D.Fla. 2009) (three-week lag time to assert a privilege weighed in favor in finding a waiver of privilege); see also *Stewart Title Guar. Co. v. Owlett & Lewis, P.C.*, 297 F.R.D. 232, 241-42 (M.D.Pa. 2013) (the producing party "failed to follow up on any obvious indications that a protected communication or information has been produced inadvertently"); *Kaiser v. Kirchick*, No. CV 21-10590-MBB, 2022 WL 182375, at *9 (D. Mass. Jan. 20, 2022) (reasoning that "the passage of time before" the privilege claim was "indicative of negligence, not diligence"). Ironically, SEA relied on these same cases to successfully argue that SM Lines had waived the work product privilege over a document in that case. See *Samsung Electronics America, Inc. v. SM Line Corp.*, SEA's Motion for Determination of Claim of Privilege and Waiver of Same (FMC Docket 23-01).

It would be very unfair and highly prejudicial to HMM's defense of this action to allow the claw back of highly relevant and probative documents, even if they do undermine SEA's case. Moreover, it would be without precedent to permit the claw back of 180 allegedly non-attorney fact work product documents on the basis of the sparse information provided by SEA.¹⁷ "Key to the court's consideration of [the fairness] factor is the relevancy of the documents." *Wallace v. Beech Aircraft Corp.*, 179 F.R.D. 313, 314 (D. Kan. 1998). There is no question that the Suspect Documents are relevant because many of them relate to SEA's yearly audit of its operations and failures in these operations led to unusually high detention and demurrage costs. It would also be patently unfair to HMM, which as noted above has used and relied on these documents to craft its defense strategy. The fifth factor therefore also weighs in favor of waiver.

3. In the Alternative, HMM is Entitled to the Suspect Documents on Showing of Necessity

If this Court were to find that the Suspect Documents are protected as work product (they are not) and that SEA has not waived the work product protection (it has), HMM is nonetheless entitled to the Suspect Documents because HMM can make a sufficient showing of necessity and undue hardship. Although the attorney work-product doctrine can protect an attorney's materials in a number of different circumstances, not "all written materials obtained or prepared by an adversary's counsel with an eye toward litigation are necessarily free from discovery in all cases."¹⁸ Rather, attorney work-product is discoverable "if the party seeking discovery can make a sufficient showing of necessity."¹⁹

A party seeking discovery of "fact" work product—e.g., "[w]here relevant and non-privileged facts remain hidden in an attorney's file and where production of those facts is essential to

¹⁷ This is particularly true where SEA's alleged explanation is at odds with other contemporaneous materials that explain the operational basis for these documents and its origin prior to the retention of counsel for SEA's claims. See SEA_HMM-2736537, Exhibit 4.

¹⁸ *Hickman v. Taylor*, 329 U.S. 495, 511, 67 S. Ct. 385, 394, 91 L. Ed. 451 (1947)

¹⁹ 8 Charles Alan Wright and Arthur R. Miller, *Federal Practice and Procedure* § 2025 (3d ed. 1998).

the preparation of one's case,”²⁰—must demonstrate “a substantial need for the materials and an undue hardship in acquiring the information any other way.”²¹

Factor 1: Whether the Suspect Documents are “Fact” or “Opinion” Work Product

Even if the Court were to somehow find that the Suspect Documents are protectable, they are non-attorney “fact” work product at best, not “opinion” work product that is entitled to a higher standard of protection.²² Heightened protection as opinion work product is triggered only if “disclosure creates a real, nonspeculative danger of revealing the lawyer’s thoughts”²³ Disclosure of the Suspect Documents does not create any such danger because they are all emails and documents exchanged between SEA employees (and in some cases, non-SEA employees) without any attorney thoughts, impressions or analysis. In the unlikely event the court reaches this issue, it should apply the most liberal standard of disclosure for work product.

Factor 2: Substantial Need for the Materials

HMM can make a sufficient showing of necessity of these documents. “The ‘substantial need’ inquiry requires a careful examination of whether non-disclosure will impair the truth-seeking function of discovery.”²⁴ The party seeking disclosure “need not show however, that the requested documents are critical to, or dispositive of, the issues to be litigated.”²⁵ As discussed *supra*, the Suspect Documents contain facts that are extremely damaging to SEA. Indeed, some of the Suspect

²⁰ *Hickman*, 329 U.S. at 511, 67 S. Ct. at 394.

²¹ *Dir., Off. of Thrift Supervision v. Vinson & Elkins, LLP*, 124 F.3d 1304, 1307 (D.C. Cir. 1997).

²² See *United States ex rel. Bibby v. Wells Fargo Bank, N.A.*, 165 F. Supp. 3d 1319, 1326 (N.D. Ga. 2015); see also *F.T.C. v. Boehringer Ingelheim Pharms., Inc.*, 778 F.3d 142, 153 (D.C. Cir. 2015) (finding that financial analyses and forecasts prepared by company employees are fact work product rather than opinion work product).

²³ *In re San Juan Dupont Plaza Hotel Fire Litig.*, 859 F.2d 1007, 1015 (1st Cir. 1988).

²⁴ *F.T.C.*, 778 F.3d at 156.

²⁵ *Id.*

Documents directly contradict positions SEA has taken in this case. Non-disclosure (claw back) of the Suspect Documents would therefore “impair the truth-seeking function of discovery.”²⁶

Factor 3: Undue Hardship

HMM would face undue hardship if it were to try and obtain the information in the Suspect Documents any other way. The Suspect Documents contain factual information that originated from

[REDACTED]. In SEA’s dockets before the Commission, SEA has taken the position that Samsung Electronics in Korea as well as other Samsung subsidiaries are separate entities independent of SEA in an apparent effort to thwart discovery, third-party claims, and disclaim its relationship to service contracts between various parties.²⁷ Undue hardship exists here because the information sought is already known to exist in the Suspect Documents and was produced nearly a year ago before SEA attempted to claw it back.

II. CONCLUSION

SEA’s Claw Back Demand should be denied. The Suspect Documents are clearly not work product, but, even if they were, SEA waived this protection by taking ten months to notice. In any event, HMM is entitled to the information the Suspect Documents contain. SEA’s effort to claim work product protection to avoid the impact of damaging documents should be roundly rejected.

²⁶ *F.T.C.*, 778 F.3d at 156.

²⁷ Any attempt by HMM to compel document production from foreign affiliates or third-party Samsung entities that are not parties to this action would require pursuing cross-border discovery, navigating foreign data-privacy and confidentiality restrictions, and engaging in time-consuming and costly international discovery procedures, all with no guarantee of success.

Respectfully submitted,

/s/Neil Quartaro

Neil Quartaro

Joshua P. Stein

Christopher Raleigh

Kathryn Sobotta

Henry Kim

COZEN O'CONNOR

3 WTC

175 Greenwich Street, 55th Floor

New York, NY 10007

(212) 453-3934

Dated: May 22, 2026

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 3rd day of June, 2026, the foregoing Memorandum Opposing Complainant's Claim of Privilege and Claw Back Demand was served via electronic mail on:

Christopher R. Nolan (chris.nolan@hklaw.com)
Gerald A. Morrissey III (gerald.morrissey@hklaw.com)
Kristine O. Little (kristine.little@hklaw.com)
Marisa Marinelli (marisa.marinelli@hklaw.com)
Ashleigh Higgs (Ashleigh.Higgs@hklaw.com)
Sean Sheely (sean.sheely@hklaw.com)
Allison Luzwick (Allison.Luzwick@hklaw.com)
Allison Skopec (Allison.Skopec@hklaw.com)
Jody Schisel-Meslin (Jody.Schisel-Meslin@hklaw.com)
Andrew Choi (Andrew.Choi@hklaw.com)

Counsel to Samsung Electronics America, Inc

/s/ Kathryn Sobotta

Kathryn Sobotta

Exhibit 1

From: Allison.Luzwick@hklaw.com
To: [Quartaro, Neil](#); [Sobotta, Kathryn](#)
Cc: [Gerald.Morrissey@hklaw.com](#); [chris.nolan@hklaw.com](#); [Ashleigh.Higgs@hklaw.com](#); [Marisa.Marinelli@hklaw.com](#); [Allison.Skopec@hklaw.com](#); [Andrew.Choi@hklaw.com](#); [Jody.Schisel-Meslin@hklaw.com](#); [sean.sheely@hklaw.com](#); [Kristine.Little@hklaw.com](#); [Raleigh, Christopher](#); [Stein, Josh](#); [Kim, Henry](#)
Subject: SEA v. HMM: Claw Back of Inadvertently Produced Privileged Documents Pursuant to Paragraph 15 of the Parties' Protective Order
Date: Friday, May 8, 2026 2:53:14 PM
Attachments: [SEA v. HMM Initial Privilege Log May 8, 2026.pdf](#)

****EXTERNAL SENDER****

Counsel,

Pursuant to paragraph 15 of the parties' Protective Order, SEA writes to claw back certain inadvertently produced documents in this matter. In the enclosed privilege log, we have identified by item and Bates range the documents being clawed back. We request that HMM promptly sequester, return, and destroy all copies of the identified documents, and refrain from any further review, use, or dissemination of those materials.

For context, in the SEA v. COSCO FMC matter, COSCO inquired as to an inadvertently produced document, which led to a review for similarly situated documents. SEA then found privileged documents containing or reflecting work product protected materials that had been inadvertently produced. In connection with SEA's review following that issue, SEA has now determined that many of the same audit-related work product documents were also inadvertently produced in the HMM matter. Please note that SEA's review of the HMM production remains ongoing. To the extent SEA identifies additional inadvertently produced privileged materials, we will advise you promptly.

Concerning the claw back documents themselves, the privileged documents relate to an audit conducted at the direction of counsel. The entries titled SEA-PRIV-00001 through SEA-PRIV-00005 on the privilege log reflect emails to and from SEA counsel that were not produced but identify privileged and work product protected communications related to the work product audit undertaking initiated in February 2022, including in connection with the retention of outside legal counsel.

The enclosed privilege log has been prepared in compliance with Judge Chintella's Initial Order and applicable FMC guidance. See *20230930 DK Butterfly 1, Inc. v. Bal Container Line Co., Limited*, Dkt. No. 25 01, 2025 WL 2053482, at *14 (ALJ July 16, 2025) (Order on Complainant's Motion to Compel) ("[t]o the extent that either party withholds information under a claim of privilege, a privilege log containing the following information must accompany the response: 1) Document Identification Number

consisting of Bates number or other unique identifier, if applicable; 2) Date document created or date of communication; 3) Names of authors of document or parties to communication; 4) Names of all persons who received the document or were present at time of communication; 5) Description of document or communication; 6) All privileges claimed; and 7) Basis for each privilege claimed.”).

Please confirm that HMM will sequester, return, and destroy the clawed-back documents identified in the enclosed log within the 5 days allowed per the Protective Order and will not review, use, or disseminate them further.

Best regards,

Allison Luzwick | Holland & Knight

Associate

Holland & Knight LLP

800 17th Street N.W., Suite 1100 | Washington, District of Columbia 20006

Phone +1.804.799.6706 | Fax +1.202.955.5564

allison.luzwick@hklaw.com | www.hklaw.com

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Exhibit 2

From: Allison.Luzwick@hklaw.com
To: [Quartaro, Neil](#)
Cc: chris.nolan@hklaw.com; [Stein, Josh](#); [Sobotta, Kathryn](#); Gerald.Morrissey@hklaw.com; Kristine.Little@hklaw.com; Jody.Schisel-Meslin@hklaw.com; Ashleigh.Higgs@hklaw.com; Marisa.Marinelli@hklaw.com; [Raleigh, Christopher](#); Andrew.Choi@hklaw.com; sean.sheely@hklaw.com; Allison.Skopec@hklaw.com; [Kim, Henry](#)
Subject: RE: Updated - SEA-based Depositions - Samsung Electronics America, Inv. v. HMM Co. Ltd, et al.
Date: Wednesday, May 20, 2026 10:41:17 AM
Attachments: [SEA v. HMM - Amended Privilege Log - May 20, 2026.xlsx](#)

****EXTERNAL SENDER****

Dear Neil,

As discussed below, please see attached for SEA's Amended Privilege Log. The Amended Privilege Log identifies 12 additional documents being clawed back. Below are the Bates numbers of these documents for ease of reference:

- SEA_HMM-2717110
- SEA_HMM-2717116
- SEA_HMM-2717117
- SEA_HMM-2688637
- SEA_HMM-2688644
- SEA_HMM-2688645
- SEA_HMM-2717136
- SEA_HMM-2717143
- SEA_HMM-2721550
- SEA_HMM-2721557
- SEA_HMM-2717173
- SEA_HMM-2717180

The Amended Privilege Log also identifies several additional "background" documents, all of which are denoted by the Bates "SEA-PRIV-#####". These documents are identified to provide context for the underlying reasons we are clawing back the inadvertently produced documents. Inclusion and identification of the background documents is not an admission that the privileged documents are relevant to this action or responsive to any discovery requests.

We will circulate a calendar invite for a meet and confer today as soon as you let us know which times below work best for you.

Best regards,

Allison Luzwick | Holland & Knight

Associate

Holland & Knight LLP

800 17th Street N.W., Suite 1100 | Washington, District of Columbia 20006

Phone +1.804.799.6706 | Fax +1.202.955.5564

Exhibit 3

(Redacted in Full)

Exhibit 4

To: Seungkyu Han[seungkyu.han@samsung.com]; Zully Guzman[zully.guzman@sea.samsung.com]; Connor Huddleston[c.huddleston@sea.samsung.com]
Cc: KwangHo Choi[kevin_choi@samsung.com]
From: Maria Aurora P. Dacumos[m.dacumos@sea.samsung.com]
Sent: Fri 1/7/2022 4:44:45 AM Coordinated Universal Time
Subject: RE: Re[2]: Fw: RE: Re[2]: payments

SK,

1)Please see below IEC table. For next week payment plan, green font are already posted, red we are targeting to complete our validation and make payment.

Connor will be the PIC representing Finance but rest of the team will still be supporting splitting the invoice processing/reconciliation as he won't be able to handle the volume singlehandedly.

Vendor	Total amount	01/07 Sched Paymnt	01/11 Sched Paymnt	Balance (Est.)	Notes
MSC	5,108,045	-	-	5,108,045	Ops team review in lumpsum and notify finance to pay)
UPS	4,482,841	561,477	2,000,000	1,921,365	
HMM	7,487,040	4,101,185	3,385,855	-	Ops team review in lumpsum and notify finance to pay)
CMA CGM	2,550,155	34,760	1,198,900	1,316,495	Ops team review in lumpsum and notify finance to pay)
AVL	2,475,717		1,500,000	975,717	
AIF	4,794,413	2,482,208	2,312,205	0	
PBI	942,416	735,915	131,000	75,501	
Gold point	3,179,081	-	62,945	3,116,136	\$906K payments not applied, recon shared to GP
SEALand Maersk	931,543	-	887,000	44,543	ops approval 01/05
Spirit	812,152	598,500		213,652	
HarvestTrans	685,806	-	300,000	385,806	ops approval 01/05-01/06
PAYCARGO	411,378	411,378		-	
ASL	367,035	64,450		302,585	
Maersk	256,370	39,585	168,345	48,440	
Longdo Trucking	254,469	15,196		239,273	
SM Line	195,145	195,145		-	
DIX	157,145			157,145	
Intransit Trucking	60,320	60,320		-	
Unico Logistics	39,895		39,895	-	
Cal Cartage	34,831			34,831	
Total	35,225,798	9,300,118	11,986,145	13,939,534	

2) With regards to outbound, details of the \$11.9M will be shared tomorrow after we complete the audit and EP assignment today.

Thank you,

Maria Aurora P. Dacumos | Sr. Manager
SEA LPS – Finance | Samsung Electronics America, Inc.
m.dacumos@samsung.com

SAMSUNG CONFIDENTIAL This e-mail message and any attachments are only for the use of the intended recipient and may contain information that is legally privileged, confidential or exempt from disclosure under applicable law. If you are not the intended recipient, any disclosure, distribution or other use of this e-mail message or attachments is prohibited. If you have received this e-mail message in error, please delete and notify the sender immediately.

From: Seungkyu Han <seungkyu.han@samsung.com>
Sent: Thursday, January 6, 2022 10:42 AM
To: Maria Aurora P. Dacumos <m.dacumos@sea.samsung.com>; Zully Guzman <zully.guzman@sea.samsung.com>
Cc: KwangHo Choi <kevin_choi@samsung.com>
Subject: Re[2]: Fw: RE: Re[2]: payments

Maria,

First, regarding the below summary

1. IEC
- Are those simply sum of total invoices we received or we completed the processes and ready to pay?
2. Outbound
- We have 11.9M\$ of Cello IF pending. Are those the ones completed audits and waiting to transmit?

We need more details reagrding the status.

Second, many IEC vendors are actually taking actions not to accept SEA's orders and thus this becomes even more serious as already limited capacities are shrinking further. So normal process won't resolve anything.

I want you to designate one person from finance and i will get one designated person from Supply. Then those two will be dedicated solely to payment matters - collecting invoices, validating with supporting documents, which they will trace by themselves, and issuing the payments. And you will lead this small TF team until everything would be up to date. (I am expecting you to report daily progress at 7 pm everyday to key personnel. and you should consider working location as well)

As we are out of time, act right away, please.

SK

----- Original Message -----
From: "Maria Aurora P. Dacumos" <m.dacumos@sea.samsung.com>
To: "Seungkyu Han" <seungkyu.han@samsung.com>; "Zully Guzman" <zully.guzman@sea.samsung.com>
Cc: "KwangHo Choi" <kevin_choi@samsung.com>
Sent: 1/5/2022 9:47:25 PM
Subject: RE: Fw: RE: Re[2]: payments

SK,

SOA received from IEC Vendors:

vendor	total amount
MSC	5,108,045
UPS	4,482,841
HMM	3,386,595
CMA CGM	2,515,395
AVL	2,475,717
AIF	2,312,205
PBI	942,416

Gold point	931,543
HarvestTrans	685,806
ASL	367,035
Maersk	256,370
Longdo Trucking	254,469
Spirit	213,652
DIX	157,145
XPO	149,421
Cal Cartage	34,831
Total	24,273,486

TM Status as of 01/04:

☐ SEA Cello, Billing Delayed Status

Note	01/04 (Tue)			
	TTL		30 Days	
	Count	Sum	Count	Sum
1. No Vchr	0	0	0	0
2. LSP EDI Pending	257	147,401	42	28,049
3. Auditing	483	322,963	441	294,537
CGFR	740	470,365	483	322,586
1. No Vchr	31	32,565	0	0
2. LSP EDI Pending	1,546	1,031,671	868	328,495
3. Auditing	413	414,377	258	248,587
CHR	1,990	1,478,613	1,126	577,082
1. No Vchr	4	4,072	0	0
2. LSP EDI Pending	1,625	1,060,704	696	280,469
3. Auditing	60	81,381	46	57,361
DHL	1,689	1,146,157	742	337,830
1. No Vchr	1	527	0	0
2. LSP EDI Pending	43	42,628	26	17,660
3. Auditing	5	5,140	4	4,155
KW	49	48,295	30	21,815
1. No Vchr	152	275,467	123	188,687
2. LSP EDI Pending	1,645	921,176	919	587,880
3. Auditing	209	147,269	125	103,408
UNIS	2,006	1,343,912	1,167	879,975
1. No Vchr	26	24,100	2	2,249
2. LSP EDI Pending	6,792	6,478,510	2,644	3,116,327
3. Auditing	10,742	4,629,282	8,283	3,783,065
SEA Direct	17,560	11,131,892	10,929	6,901,642
1. No Vchr	214	336,731	125	190,936
2. LSP EDI Pending	11,651	9,534,689	5,153	4,330,832
3. Auditing	11,429	5,277,449	8,716	4,196,576
SDS TTL	24,034	15,619,234	14,477	9,040,930

	Count	Sum	Count	Sum
1. Pending GL Date	195	332,101	174	314,889
2. Cello I/F Pending	9,630	11,861,455	6,875	7,800,924
3. EP Pending	526	606,909	410	472,318
SEA Finance	10,351	12,800,465	7,459	8,588,130
SEA TM Pending	183	114,356	183	114,356
SEA TTL	10,534	12,914,821	7,642	8,702,486

TTL	34,568	28,534,055	22,119	17,743,417
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WH SOA pending receipt from 3PL.

Thank you,

Maria Aurora P. Dacumos | Sr. Manager
SEA LPS - Finance | Samsung Electronics America, Inc.
m.dacumos@samsung.com

SAMSUNG CONFIDENTIAL This e-mail message and any attachments are only for the use of the intended recipient and may contain information that is legally privileged, confidential or exempt

From: Seungkyu Han <seungkyu.han@samsung.com>
Sent: Tuesday, January 4, 2022 6:14 PM
To: Maria Aurora P. Dacumos <m.dacumos@sea.samsung.com>; Zully Guzman <zully.guzman@sea.samsung.com>
Cc: KwangHo Choi <kevin_choi@samsung.com>
Subject: Re: Fw: RE: Re[2]: payments

Everyday almost all the vendors are screaming for the payment. So this is getting out of control...please complete below asap even though I said by tomorrow below, so that we can work on catch up plan. Meantime, please respond to vendors requests and questions seriously.

SK

----- Original Message -----

From: "Seungkyu Han" <seungkyu.han@samsung.com>
To: "Maria Aurora P. Dacumos" <m.dacumos@sea.samsung.com>; "Zully Guzman" <zully.guzman@sea.samsung.com>
Cc: "KwangHo Choi" <kevin_choi@samsung.com>
Sent: 1/4/2022 11:51:43 AM
Subject: Fw: RE: Re[2]: payments

Maria,

Please summarize the pending AP status by category (IEC, outbound Freight, and WH charges) and by Vendor with following information.

1. # of invoices and amounts received
2. # of invoices and amounts being processed
3. # of invoices and amounts on hold due to issues (Discrepancy, lack of supporting documents, etc)
4. Payment schedules or plan to catch up by vendor

This has to be prepared by tomorrow.

Thanks.

SK



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Exhibit 5

To: Zully Guzman[zully.guzman@sea.samsung.com]
 Cc: Maria Aurora P. Dacumos[m.dacumos@sea.samsung.com]; SeungKyu Han[SKHan@sea.samsung.com]
 From: Kwangho Choi[kevin_choi@sea.samsung.com]
 Sent: Tue 2/8/2022 4:17:57 PM Coordinated Universal Time
 Subject: Re[2]: IEC Clearance 01/20/2022
 Attachment: IEC Clearance Summary_20220120.xlsx

Good morning, Zully

Can you update the attached Excel data every day?
 (And please reply to the data as of today.)

Why is the difference between the Vendor Amount and the LPS Processing amount?
First of all, please clarify the cause of the difference and establish measures and schedules to resolve it.

Thanks!!

From: Zully Guzman <zully.guzman@sea.samsung.com>
Sent: Friday, January 21, 2022 1:03 AM
To: Seungkyu Han <seungkyu.han@samsung.com>; Maria Aurora P. Dacumos <m.dacumos@sea.samsung.com>; Connor Huddleston <c.huddleston@sea.samsung.com>
Cc: 최광호 <kevin_choi@samsung.com>; Byung Kweon Choi <byung.choi@sea.samsung.com>; Michael Rapske <m.rapske@sea.samsung.com>; Michael Henderson <m.henderson@sea.samsung.com>; Sooyong Choi <s.choi2@sea.samsung.com>; Peter Kim <peterk@sea.samsung.com>; Cristina Dizon Marucut <cmarucut@sea.samsung.com>; Jaehwan Lee <jaehwanlee@sea.samsung.com>; Vaishnavi Lakshmanan [Knox] <v.lakshmanan@partner.samsung.com>
Subject: RE: Re[2]: IEC Clearance 01/20/2022

Dear All,

Please see below IEC Clearance Summary as of 01/20/2022. Thank You

Vendor	Vendor Amt.	LPS processing							
		1. Total	2. Beginning	3. Received	4. Cleared	5. Total being processed	Vendor Responsible	LPS Supply Responsible	LPS Finance Responsible
PBI	1,062,941	611,751	611,751	-	-	611,751	-	-	-
GOLDPOINT	2,247,538	1,562,605	1,562,605	-	-	1,562,605	906,128	-	-
AIF	5,461,898	3,854,447	3,854,447	-	-	3,854,447	-	-	-
PAYCARGO	1,629,009	1,045,351	1,045,351	-	-	1,045,351	-	-	-
UPS	5,044,318	2,684,082	2,684,082	-	-	2,684,082	-	-	-
AV LOGISTICS	2,026,044	1,719,662	1,719,662	-	-	1,719,662	-	-	-
ASL	588,570	476,320	476,320	-	65,320	411,000	-	-	-
HARVEST TRANS	685,806	466,542	411,212	-	-	411,212	-	-	-
HMM	5,012,480	1,267,488	1,267,488	-	-	1,267,488	-	-	-
MSC	5,108,045	2,468,905	2,468,905	-	-	2,468,905	-	-	-
CMA	3,173,655	594,030	594,030	-	-	594,030	-	-	-
SEALAND MAERSK	931,543	42,471	42,471	-	-	42,471	8,156	35,495	-
MAERSK	256,370	215,905	164,485	-	-	164,485	-	-	-
SPIRIT	806,972	886,239	806,972	-	742,028	64,945	-	-	-
UNICO LOGISTICS	39,895	-	-	-	-	-	-	-	-
SM LINES	386,255	27,900	27,900	-	-	27,900	-	27,900	-
DIX	157,145	157,145	157,145	-	-	157,145	-	-	-
INTRANSIT TRUCKING	23,778	18,254	18,254	-	-	18,254	-	-	-
CAL CARTAGE	34,831	34,831	34,831	-	-	34,831	-	-	-
LONGDO TRUCKING	254,469	254,469	254,469	-	-	254,469	-	-	-
ZIM	1,127,410	772,510	772,510	-	-	772,510	828,965	-	(56,455)
PACIFIC INTERMODAL	60,117	60,117	23,497	-	-	23,497	-	-	-
PORTLAND CONTAINER	68,068	68,068	68,068	-	-	68,068	-	-	-
ONE	339,561	339,561	339,561	-	-	339,561	-	339,561	-
XPO	149,421	149,421	67,496	-	-	67,496	-	-	-
MERCURY TRANS	28,291	18,031	18,031	-	-	18,031	-	18,031	-
Total	36,704,428	19,796,107	19,110,321	0	807,348	18,684,196	1,743,249	420,987	-56,4

Best,
Zully Guzman | Financial Analyst

Logistics, Planning and Shared Services | Samsung Electronics America
zully.guzman@sea.samsung.com

From: Zully Guzman
Sent: Thursday, January 20, 2022 8:42 AM
To: Seungkyu Han <seungkyu.han@samsung.com>; Maria Aurora P. Dacumos <m.dacumos@sea.samsung.com>; Connor Huddleston <c.huddleston@sea.samsung.com>
Cc: '최광호' <kevin_choi@samsung.com>; Byung Kweon Choi <byung.choi@sea.samsung.com>; Michael Rapske <m.rapske@sea.samsung.com>; Michael Henderson <m.henderson@sea.samsung.com>; Sooyong Choi <s.choi2@sea.samsung.com>; Peter Kim <peterk@sea.samsung.com>; Cristina Dizon Marucut <cmarucut@sea.samsung.com>; Jaehwan Lee <jaehwanlee@sea.samsung.com>; Vaishnavi Lakshmanan [Knox] <v.lakshmanan@partner.samsung.com>
Subject: RE: Re[2]: IEC Clearance 01/19/2022

Dear All,

Please see below IEC Clearance Summary as of 01/19/2022.

Vendor	Vendor Amt.	1. Total	2. Beginning	3. Received	4. Cleared	5. Total being processed	LPS processing		
							Vendor Responsible	LPS Supply Responsible	LPS Finan Responsible
PBI	1,062,941	1,062,941	947,503	115,438	451,190	611,751	-	-	-
GOLDPOINT	2,247,538	1,656,355	1,656,355	-	93,750	1,562,605	906,128	-	-
AIF	5,461,898	5,461,898	266,300	5,195,598	1,607,450	3,854,447	-	-	-
PAYCARGO	1,629,009	2,294,558	1,889,885	404,674	1,249,207	1,045,351	-		
UPS	5,044,318	2,929,989	2,929,989	-	245,906	2,684,082	-	-	-
AV LOGISTICS	2,026,044	1,719,662	731,144	988,518	-	1,719,662	-	-	-
ASL	588,570	476,320	476,320	-	-	476,320	-	-	-
HARVEST TRANS	685,806	466,542	411,212	-	-	411,212		-	-
HMM	5,012,480	1,267,488	1,267,488	-	-	1,267,488	-	-	-
MSC	5,108,045	5,108,045	5,108,045	-	2,639,140	2,468,905	-	-	-
CMA	3,173,655	3,173,655	1,263,995	1,909,660	2,579,625	594,030	-	-	-
SEALAND MAERSK	931,543	42,471	42,471	-	-	42,471	8,156	35,495	-
MAERSK	256,370	215,905	164,485	-	-	164,485	-	-	-
SPIRIT	806,972	886,239	191,622	615,350	-	806,972	-	188,080	-
UNICO LOGISTICS	39,895	-	-	-	-	-	-	-	-
SM LINES	386,255	27,900	27,900	-	-	27,900	-	27,900	-
DIX	157,145	157,145	157,145	-	-	157,145	-	-	-
INTRANSIT TRUCKING	23,778	23,778	-	23,778	5,524	18,254	-	-	-
CAL CARTAGE	34,831	34,831	34,831	-	-	34,831	-	-	-
LONGDO TRUCKING	254,469	254,469	254,469	-	-	254,469	-	-	-
ZIM	1,127,410	772,510	772,510	-	-	772,510	828,965	-	(56,455)
PACIFIC INTERMODAL	60,117	60,117	23,497	-	-	23,497	-	-	-
PORTLAND CONTAINER	68,068	68,068	68,068	-	-	68,068	-	-	-
ONE	339,561	339,561	339,561	-	-	339,561	-	339,561	-
XPO	149,421	149,421	67,496	-	-	67,496	-	-	-
MERCURY TRANS	28,291	18,031	18,031	-	-	18,031	-	18,031	-
Total	36,704,428	28,667,898	19,110,321	9,253,015	8,871,792	19,491,544	1,743,249	609,066	-56

Thank You,
Zully Guzman | Financial Analyst

Logistics, Planning and Shared Services | Samsung Electronics America
zully.guzman@sea.samsung.com

From: Zully Guzman
Sent: Friday, January 14, 2022 8:19 AM
To: Seungkyu Han <seungkyu.han@samsung.com>; Maria Aurora P. Dacumos <m.dacumos@sea.samsung.com>; Connor Huddleston <c.huddleston@sea.samsung.com>
Cc: '최광호' <kevin_choi@samsung.com>; Byung Kweon Choi <byung.choi@sea.samsung.com>; Michael Rapske <m.rapske@sea.samsung.com>; Michael

Henderson <m.henderson@sea.samsung.com>; Sooyong Choi <s.choi2@sea.samsung.com>; Peter Kim <peterk@sea.samsung.com>; Cristina Dizon Marucut <cmarucut@sea.samsung.com>; Jaehwan Lee <jaehwanlee@sea.samsung.com>; Vaishnavi Lakshmanan [Knox] <v.lakshmanan@partner.samsung.com>
Subject: RE: Re[2]: IEC Clearance 01/12/2022

Dear All,

Please see below IEC Clearance Summary as of 01/13/2022. Thank You.

Vendor	Vendor Amt.	1. Total	2. Beginning	3. Received	4. Cleared	5. Total being processed	LPS processing		
							Vendor Responsible	LPS Supply Responsible	LPS Fin Respon
PBI	1,152,798	1,387,637	712,664	234,839	-	947,503	-	-	
GOLDPOINT	2,247,538	2,247,538	1,656,355	-	-	1,656,355	906,128		
AIF	4,794,913	3,940,993	266,300	-	-	266,300	-	-	-
PAYCARGO	1,629,009	2,390,414	1,889,885	-	-	1,889,885	-		
UPS	5,044,318	3,452,373	2,929,989	-	-	2,929,989	-	-	-
AV LOGISTICS	2,209,538	731,144	731,144	-	-	731,144	-	-	-
ASL	588,570	524,120	476,320	-	-	476,320	-	-	-
HARVEST TRANS	685,806	466,542	307,908	158,634	55,331	411,212		-	
HMM	5,012,480	1,267,488	1,267,488	-	-	1,267,488	-	-	-
MSC	5,108,045	5,108,045	5,108,045	-	-	5,108,045	-	-	-
CMA	3,749,055	1,263,995	1,263,995	-	-	1,263,995	-	-	-
SEALAND MAERSK	931,543	42,471	42,471	-	-	42,471	8,156	35,495	-
MAERSK	256,370	739,335	215,905	-	51,420	164,485	-	-	-
SPIRIT	790,122	270,889	191,622	79,267	79,267	191,622	-	188,080	-
UNICO LOGISTICS	39,895	-	-	-	-	-	-	-	-
SM LINES	386,255	27,900	27,900	-	-	27,900	-	27,900	-
DIX	157,145	157,145	157,145	-	-	157,145	-	-	-
INTRANSIT TRUCKING	60,320	-	-	-	-	-	-	-	-
CAL CARTAGE	34,831	34,831	34,831	-	-	34,831	-	-	-
LONGDO TRUCKING	254,469	254,469	254,469	-	-	254,469	-	-	-
ZIM	1,127,410	1,127,410	772,510	-	-	772,510	828,965	-	(56,455)
PACIFIC INTERMODAL	60,117	60,117	23,497	-	-	23,497	-	23,497	-
PORTLAND CONTAINER	68,068	68,068	68,068	-	-	68,068	-	-	-
ONE	339,561	339,561	339,561	-	-	339,561	-	339,561	-
XPO	149,421	149,421	149,421	-	81,925	67,496	4,570	27,169	117,681
MERCURY TRANS	28,291	28,291	18,031	-	-	18,031	-	18,031	-
Total	36,905,886	26,080,196	18,905,523	472,741	267,943	19,110,321	1,747,819	659,733	

Best,

Zully Guzman | Financial Analyst

Logistics, Planning and Shared Services | Samsung Electronics America
zully.guzman@sea.samsung.com

From: Zully Guzman

Sent: Wednesday, January 12, 2022 9:08 PM

To: Seungkyu Han <seungkyu.han@samsung.com>; Maria Aurora P. Dacumos <m.dacumos@sea.samsung.com>; Connor Huddleston <c.huddleston@sea.samsung.com>

Cc: '최광호' <kevin_choi@samsung.com>; Byung Kweon Choi <byung.choi@sea.samsung.com>; Michael Rapske <m.rapske@sea.samsung.com>; Michael Henderson <m.henderson@sea.samsung.com>; Sooyong Choi <s.choi2@sea.samsung.com>; Peter Kim <peterk@sea.samsung.com>; Cristina Dizon Marucut <cmarucut@sea.samsung.com>; Jaehwan Lee <jaehwanlee@sea.samsung.com>; Vaishnavi Lakshmanan [Knox] <v.lakshmanan@partner.samsung.com>

Subject: RE: Re[2]: IEC Clearance 01/12/2022

Dear All,

Please see below IEC Clearance Summary as of 01/12/2022. Thank You

Summary

Vendor	Vendor Amt.	1. Total	2. Beginning	3. Received	4. Cleared	5. Total being processed	LPS processing		
							Vendor Responsible	LPS Supply Responsible	LPS Fin Respon

							Vendor Responsible	LPS Supply Responsible	LPS Finance Responsible
PBI	1,152,798	1,152,798	917,959	234,839	440,134	712,664	-	-	
GOLDPOINT	2,247,538	2,247,538	1,925,475	-	269,120	1,656,355	906,128		
AIF	4,794,913	3,940,993	266,300	-	-	266,300	-	-	-
PAYCARGO	1,629,009	2,390,414	2,390,414	-	500,529	1,889,885	-		
UPS	5,044,318	3,452,373	2,929,989	-	-	2,929,989	-	-	-
AV LOGISTICS	2,209,538	731,144	731,144	-	-	731,144	-	-	-
ASL	588,570	524,120	476,320	-	-	476,320	-	-	-
HARVEST TRANS	685,806	307,908	307,908	-	-	307,908		-	50,376
HMM	5,012,480	1,267,488	1,267,488	-	-	1,267,488	-	-	-
MSC	5,108,045	5,108,045	5,108,045	-	-	5,108,045	-	-	-
CMA	3,749,055	1,263,995	1,263,995	-	-	1,263,995	-	-	-
SEALAND MAERSK	931,543	42,471	42,471	-	-	42,471	8,156	35,495	-
MAERSK	256,370	1,430,230	215,905	690,895	-	906,800	-	-	-
SPIRIT	790,122	191,622	191,622	-	-	191,622	-	188,080	-
UNICO LOGISTICS	39,895	-	-	-	-	-	-	-	-
SM LINES	386,255	27,900	27,900	-	-	27,900	-	27,900	-
DIX	157,145	157,145	157,145	-	-	157,145	-	-	-
INTRANSIT TRUCKING	60,320	-	-	-	-	-	-	-	-
CAL CARTAGE	34,831	34,831	34,831	-	-	34,831	-	-	-
LONGDO TRUCKING	254,469	254,469	254,469	-	-	254,469	-	-	-
ZIM	1,127,410	1,127,410	-	1,127,410	354,900	772,510	828,965	-	(56,455)
PACIFIC INTERMODAL	60,117	60,117	-	60,117	36,620	23,497	-	23,497	-
PORTLAND CONTAINER	68,068	68,068	-	68,068	-	68,068	-	-	-
ONE	339,561	339,561	-	339,561	-	339,561	-	339,561	-
XPO	149,421	149,421	-	149,421	-	149,421	4,570	27,169	117,681
MERCURY TRANS	28,291	28,291	-	28,291	10,260	18,031	-	18,031	-
Total	36,905,886	26,298,350	18,509,379	2,698,602	1,611,563	19,596,418	1,747,819	659,733	111,6

Best,
Zully Guzman | Financial Analyst

Logistics, Planning and Shared Services | Samsung Electronics America
zully.guzman@sea.samsung.com

From: Zully Guzman
Sent: Tuesday, January 11, 2022 9:58 PM
To: Seungkyu Han <seungkyu.han@samsung.com>; Maria Aurora P. Dacumos <m.dacumos@sea.samsung.com>; Connor Huddleston <c.huddleston@sea.samsung.com>
Cc: 최광호 <kevin_choi@samsung.com>; Byung Kweon Choi <byung.choi@sea.samsung.com>; Michael Rapske <m.rapske@sea.samsung.com>; Michael Henderson <m.henderson@sea.samsung.com>; Sooyong Choi <s.choi2@sea.samsung.com>; Peter Kim <peterk@sea.samsung.com>; Cristina Dizon Marucut <cmarucut@sea.samsung.com>; Jaehwan Lee <jaehwanlee@sea.samsung.com>; Vaishnavi Lakshmanan [Knox] <v.lakshmanan@partner.samsung.com>
Subject: RE: Re[2]: IEC Clearance

Hi SK,

Please see attached Monday, 01/10 and Tuesday, 01/11 update. Today's update is summarized below.

Vendor	Vendor Amt.	LPS processing								
		1. Total	2. Beginning	3. Received	4. Cleared	5. Total being processed	Vendor Responsible	LPS Supply Responsible	LPS Finance Responsible	In Progress
PBI	1,575,391	917,959	917,959	-	-	917,959	-	-	23,162	894,797
GOLDPOINT	2,247,538	2,247,538	2,247,538	-	322,063	1,925,475				1,925,475
AIF	4,794,913	3,940,993	3,783,615	157,378	3,674,693	266,300	-	-	-	266,300
PAYCARGO	1,629,009	2,390,414	1,804,022	586,392	-	2,390,414	-			2,390,413.61
UPS	5,044,318	3,452,373	3,452,373	-	522,384	2,929,989				2,929,989

AV LOGISTICS	2,209,538	731,144	731,144	-		731,144	-	-	-	731,144	-
ASL	588,570	524,120	524,120	-	47,800	476,320	-	-	-	476,320	-
HARVEST TRANS	685,806	307,908	307,908	-	-	307,908	-	-	50,376	257,532	-
HMM	5,012,480	1,267,488	1,267,488	-	-	1,267,488	-	-	-	1,267,488	-
MSC	5,108,045	5,108,045	5,108,045	-	-	5,108,045	-	-	-	5,108,045	-
CMA	3,749,055	1,263,995	1,263,995	-	-	1,263,995	-	-	-	1,263,995	-
SEALAND MAERSK	931,543	42,471	42,471	-	-	42,471	8,156	35,495	-	(1,180)	-
MAERSK	256,370	739,335	48,440	690,895	523,430	215,905	-	-	-	215,905	-
SPIRIT	790,122	191,622	191,622	-	-	191,622	-	188,080	-	3,542	-
UNICO LOGISTICS	39,895	-	-	-	-	-	-	-	-	-	-
SM LINES	386,255	27,900	27,900	-	-	27,900	-	27,900	-	-	-
DIX	157,145	157,145	157,145	-	-	157,145	-	-	-	157,145	-
INTRANSIT TRUCKING	60,320	-	-	-	-	-	-	-	-	-	-
CAL CARTAGE	34,831	34,831	34,831	-	-	34,831	-	-	-	34,831	-
LONGDO TRUCKING	254,469	254,469	254,469	-	-	254,469	-	-	-	254,469	-
Total	35,555,612	23,599,749	22,165,085	1,434,664	5,090,370	18,509,379	8,156	251,475	73,538	18,176,210	-

Thanks,
Zully Guzman | Financial Analyst

Logistics, Planning and Shared Services | Samsung Electronics America
zully.guzman@sea.samsung.com

From: 한승규 <seungkyu.han@samsung.com>
Sent: Tuesday, January 11, 2022 12:17 AM
To: Zully Guzman <zully.guzman@sea.samsung.com>; Maria Aurora P. Dacumos <m.dacumos@sea.samsung.com>; Connor Huddleston <c.huddleston@sea.samsung.com>
Cc: 최광호 <kevin_choi@samsung.com>; Byung Kweon Choi <byung.choi@sea.samsung.com>; Michael Rapske <m.rapske@sea.samsung.com>; Michael Henderson <m.henderson@sea.samsung.com>; Sooyong Choi <s.choi2@sea.samsung.com>; Peter Kim <peterk@sea.samsung.com>; Cristina Dizon Marucut <cmarucut@sea.samsung.com>; Jaehwan Lee <jaehwanlee@sea.samsung.com>; Vaishnavi Lakshmanan [Knox] <v.lakshmanan@partner.samsung.com>
Subject: FW: Re[2]: IEC Clearance

Maria and Zully,

No updates for today?

SK

----- Original Message -----
Sender : Seungkyu Han <seungkyu.han@samsung.com> Logistics Mgmt. /LPS/SEA/Principal Professional/Samsung Electronics
Date : 2022/01/08 11:18 (GMT-6)
Title : Re[2]: IEC Clearance

Zully,

Thank you for providing this summary. I know it won't be easy to summarize status daily but it is important to understand and share overall amounts and the progresses with all associated people, so please keep it up.

Meantime, the column "4. Cleared" meant to be for the ones we completed validation and processing and ready to pay. Therefore, this amounts should be the same as 6-2. added under 6. payment. So please fix this from Monday summary.

Thanks.

SK

----- Original Message -----

From: "Zully Guzman" <zully.guzman@sea.samsung.com>

To: "Seungkyu Han" <seungkyu.han@samsung.com>; "Maria Aurora P. Dacumos" <m.dacumos@sea.samsung.com>; "Connor Huddleston" <c.huddleston@sea.samsung.com>

Cc: "KwangHo Choi" <kevin_choi@samsung.com>; "Byung Kweon Choi" <byung.choi@sea.samsung.com>; "Michael Rapske" <m.rapske@sea.samsung.com>; "Michael Henderson" <m.henderson@sea.samsung.com>; "Sooyong Choi" <s.choi2@sea.samsung.com>; "Peter Kim" <peterk@sea.samsung.com>; "Cristina Dizon Marucut" <cmarucut@sea.samsung.com>; "Jaehwan Lee" <jaehwanlee@sea.samsung.com>; "Vaishnavi Lakshmanan [Knox]" <v.lakshmanan@partner.samsung.com>

Sent: 1/7/2022 10:59:36 PM
Subject: RE: IEC Clearance

Dear All,

Please see below IEC Clearance Summary as of 01/07/2022. Thank You

Summary

Vendor	Vendor Amt.	1. Total	2. Beginning	3. Received	4. Cleared	5. Total being processed	LPS processing		
							Vendor Responsible	LPS Supply Responsible	LPS Financ Responsib
PBI	1,678,331	942,416	-	1,678,331	735,915	942,416	-	-	133,524
GOLDPOINT	2,247,538	2,247,538	-	2,247,538	-	2,247,538	906,128	643,494	697,917
AIF	4,794,913	2,312,705	-	4,794,913	2,482,208	2,312,705	-	-	-
PAYCARGO	1,629,009	1,217,631	-	1,629,009	411,378	1,217,631	-	717,102	500,529
UPS	5,044,318	4,482,841	-	5,044,318	561,477	4,482,841	533,884	856,179	-
AV LOGISTICS	2,209,538	2,209,538	-	2,209,538	739,197	1,470,341	-	-	-
ASL	588,570	524,120	-	588,570	64,450	524,120	-	-	-
HARVEST TRANS	685,806	466,542	-	685,806	219,264	466,542	50,376	-	-
HMM	5,012,480	1,985,862	-	5,012,480	3,385,805	1,626,675	-	-	-
MSC	5,108,045	5,108,045	-	5,108,045	-	5,108,045	-	-	-
CMA	3,749,055	3,714,295	-	3,749,055	1,233,660	2,515,395	-	-	-
SEALAND MAERSK	931,543	931,543	-	931,543	889,072	42,471	8,156	35,495	-
MAERSK	256,370	385,130	-	256,370	39,585	216,785	-	-	-
SPIRIT	790,122	191,622	-	790,122	598,500	191,622	-	188,080	-
UNICO LOGISTICS	39,895	39,895	-	39,895	39,895	-	-	-	-
SM LINES	386,255	27,900	-	386,255	358,355	27,900	-	27,900	-
DIX	157,145	157,145	-	157,145	-	157,145	-	-	-
INTRANSIT TRUCKING	60,320	-	-	60,320	60,320	-	-	-	-
CAL CARTAGE	34,831	34,831	-	34,831	-	34,831	-	-	-
LONGDO TRUCKING	254,469	254,469	-	254,469	-	254,469	-	-	-
Total	35,658,552	27,234,068	-	35,658,552	11,819,080	23,839,473	1,498,544	2,468,249	1,331,969

Best,

Zully Guzman | Financial Analyst

Logistics, Planning and Shared Services | Samsung Electronics America

zully.guzman@sea.samsung.com

From: Seungkyu Han <seungkyu.han@samsung.com>

Sent: Friday, January 7, 2022 2:22 PM

To: Maria Aurora P. Dacumos <m.dacumos@sea.samsung.com>; Connor Huddleston <c.huddleston@sea.samsung.com>; Vaishnavi Lakshmanan [Knox] <v.lakshmanan@partner.samsung.com>

Cc: KwangHo Choi <kevin_choi@samsung.com>; Byung Kweon Choi <byung.choi@sea.samsung.com>; Michael Rapske <m.rapske@sea.samsung.com>; Michael Henderson <m.henderson@sea.samsung.com>; Sooyong Choi <s.choi2@sea.samsung.com>; Zully Guzman <zully.guzman@sea.samsung.com>; Peter Kim <peterk@sea.samsung.com>; Cristina Dizon Marucut <cmarucut@sea.samsung.com>; Jaehwan Lee <jaehwanlee@sea.samsung.com>

Subject: IEC Clearance

Maria,

I have attached daily summary format. If you see you will understand what we are trying to achieve. If you think we should change feel free to do so. This should be published daily 7 pm from today if possible.

Meantime, please contact IEC vendors and collect their AR agings (I know theirs are not always accurate) to get a benchmark.

Thank you.

SK

----- Original Message -----

From: "Seungkyu Han" <seungkyu.han@samsung.com>

To: "Sooyong Choi" <s.choi2@sea.samsung.com>; "Zully Guzman" <zully.guzman@sea.samsung.com>; "Peter Kim" <peterk@sea.samsung.com>; "Cristina Dizon Marucut" <cmarucut@sea.samsung.com>; "Jaehwan Lee" <jaehwanlee@sea.samsung.com>

Cc: "KwangHo Choi" <kevin_choi@samsung.com>; "Byung Kweon Choi" <byung.choi@sea.samsung.com>; "Michael Rapske" <m.rapske@sea.samsung.com>; "Michael Henderson" <m.henderson@sea.samsung.com>

Sent: 1/6/2022 10:53:22 AM

Subject: Re: (Important) RE: **2ND REQUEST** CMA CANCELLATION BEST BUY WORKORDERS - Samsung Delays in Atlanta

All,

This IEC payment becomes totally out of control and without extreme and drastic measures, we cannot resolve, I think. So, I want Supply team to designate one person entirely for this invoice matters while logistics finance doing the same so that those two dedicated resources will tackle this pending IEC invoices until everything becomes up to date. And this small group will be led by Maria and she will share the daily progress 7pm everyday to the recipients of this email, once they kick off.

This dedicated group will commence work from tomorrow, so please let me know who will be dedicated from supply team and finance team by noon today.

Thanks.

SK

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Exhibit 6

To: Cristina Dizon Marucut[cmarucut@sea.samsung.com]
From: Maria Kristina Fernando[m.fernando@sea.samsung.com]
Sent: Tue 2/8/2022 4:36:56 PM Coordinated Universal Time
Subject: RE: RE: IEC 2021 post audit
Attachment: Copy of IEC changes V2.xlsx
Attachment: NAIM8823366.pdf
Attachment: Mass_INVNAIM8824376_1.pdf
Attachment: UST674741.pdf
Attachment: Attachment

Cristina,

Please see attached file and invoices for reference
Thank you

Maria Kristina Fernando
Direct Ship Operations
Samsung Electronics America(SEA)
Address: 1100 Klein Road, Plano, TX 75074
Email: m.fernando@sea.samsung.com
Telephone #: (972) 761-7411
Cellphone #: (972) 533-6781 (call this #)

From: 조경숙 [<mailto:kirsten@samsung.com>]
Sent: Monday, February 7, 2022 6:11 PM
To: Cristina Dizon Marucut <cmarucut@sea.samsung.com>; Maria Kristina Fernando <m.fernando@samsung.com>
Cc: Peter Kim <peter.k@samsung.com>; Sooyong Choi <s.choi2@samsung.com>; Jaehwan Lee <jaehw.lee@samsung.com>; Dongwoo Chae [Knox] <dongwoo.c@samsung.com>
Subject: RE: RE: IEC 2021 post audit

Team,

as we discussed,

please
add sample data per cases,
add email sample upon approval that system should send out
and pdf invoice that should change (format)
and review attached file and change if you need to

can i have this by tomorrow noon ?

We need to review with MIS team again after changes.

Thank you !

----- Original Message -----

Sender : Cristina Dizon Marucut <cmarucut@sea.samsung.com>
Date : 2022-02-07 15:32 (GMT-6)
Title : RE: IEC 2021 post audit

MK, please review and provide sample for DEM and DET and share to all.

From: Moonhee Hur <mhur@sea.samsung.com>
Sent: Monday, February 7, 2022 2:37 PM
To: Kirsten <kirsten@samsung.com>; Dongwoo Chae [Knox] <dongwoo.c@samsung.com>; Minjin Cho <minjin.c@partner.samsung.com>; 'Peter Kim' <peter.k@samsung.com>; Cristina Dizon Marucut <cmarucut@sea.samsung.com>; Jaehwan Lee <jaehwanlee@sea.samsung.com>; Sooyong Choi <s.choi2@sea.samsung.com>; Zully Guzman <zully.guzman@sea.samsung.com>; Maria Aurora P. Dacumos <m.dacumos@sea.samsung.com>; 심상도 <s1.shim@partner.samsung.com>
Subject: RE: IEC 2021 post audit

Please find attached for the updated file in the meeting.
Let me know if any further update needed,
Final version and sample case will be delivered to MIS team.

Thank you

-----Original Appointment-----

From: Moonhee Hur

Sent: Friday, February 4, 2022 6:11 PM

To: Moonhee Hur; Kirsten Kim; Dongwoo Chae [Knox]; Minjin Cho; 'Peter Kim'; Cristina Dizon Marucut; Jaehwan Lee; Sooyong Choi; Zully Guzman; Maria Aurora P. Dacumos; 심상도

Cc: Kirsten

Subject: IEC 2021 post audit

When: Monday, February 7, 2022 1:30 PM-2:00 PM (UTC-06:00) Central Time (US & Canada).

Where: webex

Please join this WebEx meeting to discuss below subject in the email

@ 2/7 (Mon) 1:30PM

Let me know if you have schedule conflict and would like to propose another time

Join from the meeting link

<https://samsung-electronics.webex.com/samsung-electronics/j.php?MTID=mb98e6933672f2819b3673176f82390a6>

Join by phone

+1 877-310-7479

Meeting number (access code): 230 249 71346

From: Kirsten Kim

Sent: Friday, February 4, 2022 5:29 PM

To: Peter Kim <peterk@sea.samsung.com>; Cristina Dizon Marucut <cmarucut@sea.samsung.com>; Jaehwan Lee <jaehwanlee@sea.samsung.com>; Sooyong Choi <s.choi2@sea.samsung.com>; Zully Guzman <zully.guzman@sea.samsung.com>; Maria Aurora P. Dacumos <m.dacumos@sea.samsung.com>

Cc: kevin_choi@samsung.com; '최병권' <byung.choi@samsung.com>; Dongwoo Chae [Knox] <dongwoo.c@samsung.com>; 'Changho Yu' <changho13.yu@samsung.com>; Nayoung Kang <n1.kang@sea.samsung.com>; Seungkyu Han <seungkyu.han@samsung.com>; Michael Rapske <m.rapske@sea.samsung.com>

Subject: RE: IEC 2021 post audit

To: Inbound Team/Direct Ship Team, and Accounting Team

Here is a summary of what we reviewed in past 2 days, and what we agreed to do :
(please let me know if I missed any)

< Demurrage and Detention Charge Rate/Free Days master >

as-is: Not available

to-be: Rate Table will manage rate per tier, free days per carriers

Carrier	Origin/Des	Port	Commodity	Free time		DEMURRAGE PER DEM				DETENTION PER DET			
				Demurrage	Detention	Port Charge		Data/Day		Data/Day		Data/Day	
				Port	Commodity	Tier	Day	USD	USD	Tier	Day	USD	USD
HMM	AS/Asia	US	S	20		Tier 1	1-3	\$220	\$280	Tier 1	1-999	\$180	
						Tier 2	4-7	\$240	\$385	Tier 2			
						Tier 3	8-999	\$380	\$465	Tier 3			
SM&L	AS/Asia	US	S	20		Tier 1	1-1	\$270	N/A	Tier 1	1-1	\$380	
						Tier 2				Tier 2			
						Tier 3				Tier 3			
						Tier 1	1-16	\$180	\$250	Tier 1	1-16	\$180	

< Changing Uploading program >

as-is: Estimate Charge Upload (YWM905019R)

Actual Charge Upload (YWM905022R)

No validate logics except Pay To Vendors, and Amount

to-be: 1) New IEC Uploading program for Demurrage and Detention

to validate field/data/logics

1-a) validate fields : (see ICE layout)

Start Charging Date, Stop Charging Date, (+ free days)

pay to vendor Types (Carrier, Trucker)

1-b) validate logics

2) Reference numbers (SN) - can use with same charge type if period is different
(avoid using different charge types, or avoid process w/o references)

3) Rates and amount will be validated if available

4) Charging periods will be validated if available

< IEC Estimate process changes >

as-is: modification not available, must be deleted and re-uploaded

to-be 1) able to modify ALL fields if it's not approved
2) able to modify "REMARKS" (3PL/Samsung) regardless of approval status
3) validate SN, dates, rates, and period.

< IEC Actual invoice process changes > ** need to request to MIS team
as-is 1) Estimate must match with Actual
no validation available except matching estimated amount against actual
2) data must be uploaded by Finance Team again for actual
to-be 1) Will process if Actual <= Estimate amount
as long as rate/amount/period matches
2) data can be pulled from Estimate using reference no.
No need to upload again for actual
3) system will validate followings
Charge Amount if Rates are available
Free Days if Carrier Master Data is available
Start and Stop Charging Dates if Events are available

< Operation Team's To-Do >
1) **need rate per tiers, per carriers { who can follow up on this? }**
2) need to upload w/ required fields (see attached IEC uploading fields)
3) need to collect missing fields for previously uploaded invoices,
see attached file for "IEC uploading layout"
*** need MIS support to create a temporary program to update fields for already processed invoices*

Let's review again on Monday to finalize changes, and assign who will do what and when.

Thank you!

From: Seungkyu Han [mailto:seungkyu.han@samsung.com]
Sent: Wednesday, February 2, 2022 11:30 AM
To: Peter Kim <peterk@sea.samsung.com>; Cristina Dizon Marucut <cmarucut@sea.samsung.com>; Dongwoo Chae [Knox] <dongwoo.c@samsung.com>; Jaehwan Lee <jaehwanlee@sea.samsung.com>; Sooyong Choi <s.choi2@sea.samsung.com>; Michael Rapske <m.rapske@sea.samsung.com>
Cc: kevin_choi@samsung.com; '최병권' <byung.choi@samsung.com>; 'Changho Yu' <changho13.yu@samsung.com>; Maria Aurora P. Dacumos <m.dacumos@sea.samsung.com>; Zully Guzman <zully.guzman@sea.samsung.com>; Nayoung Kang <n1.kang@sea.samsung.com>; Kirsten Kim <kirsten@sea.samsung.com>
Subject: IEC 2021 post audit

This morning, I asked Kirsten BJN to create audit capability for IEC, especially demurrages and detentions in WMP so that we can at least complete the post audit for demurrages and detentions occurred in 2021.

Peter CJN/Cristina,

Please gather all excel files that we collected from ocean carriers (both DS and Hub) and conditions - free days, daily per diem, and all necessary information by ocean carriers.

Dongwoo BJN,

Please work with Cristina to create functions for the audit in WMP.

As this IEC issue is becoming a hot potato in HQ, even though it basically wasn't LPS's responsibilities, it cannot be free if we have overpaid without proper level of validations. **So take this seriously and try to complete ASAP.**

Thanks.

SK

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Exhibit 7

To: Maria Aurora P. Dacumos[m.dacumos@sea.samsung.com]; Zully Guzman[zully.guzman@sea.samsung.com]; Connor Huddleston[c.huddleston@sea.samsung.com]; Peter Kim [peterk@sea.samsung.com]; Jaehwan Lee[jaehwanlee@sea.samsung.com]; Sooyong Choi[s.choi2@sea.samsung.com]; Michael Rapske[m.rapske@sea.samsung.com]
Cc: kevin_choi@samsung.com[kevin_choi@samsung.com]; '최병권'[byung.choi@samsung.com]; 'Changho Yu'[changho13.yu@samsung.com]
From: Seungkyu Han[seungkyu.han@samsung.com]
Sent: Thur 2/17/2022 7:06:30 PM Coordinated Universal Time
Subject: Re[2]: IEC
Attachment: image001.gif
Attachment: 2022.01-02.15 IEC_Report.xlsb

All,

Please ensure to have invoices, backup documents, and any other proofs for the charges associated with this amounts.

Thanks.

SK

----- Original Message -----

From: "Maria Aurora P. Dacumos" <m.dacumos@sea.samsung.com>
To: "Seungkyu Han" <seungkyu.han@samsung.com>; "Zully Guzman" <zully.guzman@sea.samsung.com>; "Connor Huddleston" <c.huddleston@sea.samsung.com>; "Peter Kim" <peterk@sea.samsung.com>; "Jaehwan Lee" <jaehwanlee@sea.samsung.com>; "Sooyong Choi" <s.choi2@sea.samsung.com>; "Michael Rapske" <m.rapske@sea.samsung.com>
Cc: "kevin_choi@samsung.com" <kevin_choi@samsung.com>; "'최병권'" <byung.choi@samsung.com>; "'Changho Yu'" <changho13.yu@samsung.com>
Sent: 2/16/2022 11:55:27 PM
Subject: RE: IEC

SK,
Please see attached IEC payment details for Jan to Feb.15, 2022.

Row Labels	2022.01	2022.02	Grand Total
DEMURRAGE	38,982,775	20,135,071	59,117,847
DETENTION CHARGE	4,546,565	604,484	5,151,049
HANDLING CHARGE	16,205,770	7,192,729	23,398,499
Grand Total	59,735,111	27,932,284	87,667,394

Thank you,

Maria Aurora P. Dacumos | Sr. Manager
SEA LPS – Finance | Samsung Electronics America, Inc.
m.dacumos@samsung.com

SAMSUNG CONFIDENTIAL This e-mail message and any attachments are only for the use of the intended recipient and may contain information that is legally privileged, confidential or exempt from disclosure under applicable law. If you are not the intended recipient, any disclosure, distribution or other use of this e-mail message or attachments is prohibited. If you have received this e-mail message in error, please delete and notify the sender immediately.

From: Seungkyu Han <seungkyu.han@samsung.com>
Sent: Wednesday, February 16, 2022 11:00 AM
To: Maria Aurora P. Dacumos <m.dacumos@sea.samsung.com>; Zully Guzman <zully.guzman@sea.samsung.com>; Connor Huddleston <c.huddleston@sea.samsung.com>; Peter Kim <peterk@sea.samsung.com>; Jaehwan Lee <jaehwanlee@sea.samsung.com>; Sooyong Choi <s.choi2@sea.samsung.com>; Michael Rapske <m.rapske@sea.samsung.com>
Cc: kevin_choi@samsung.com; '최병권' <byung.choi@samsung.com>; 'Changho Yu' <changho13.yu@samsung.com>
Subject: IEC

Maria,

HA GBM will send people to support current port congestions and IEC issue. And one of their request is to prepare all the documents so that they can review the IEC - whether duplicates, overpayments, incorrect payments, etc...

So here are the things we need to prepare.

1. Complete to gather Payment details for Paycargo/AIF/AV that I asked last week.
2. Prepare invoices and associated backup documents including gate in/out information, and demurrage/detention calculations (Start from Feb payments but what they will see is entire 2021 so, prepare for all)
3. Any other proofs we need to provide in order for us to prove we actually audit all the invoices properly and ensure to filter duplicates, overpayments, incorrect payments.

Let me know if you have questions.

Thanks.

SK

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Appendix 1

(Redacted in Full)